CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. E543A38C5
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
RELEASE IN FULL

From: Daniel Douglass <douglass@arterhadden.com>
Sent: Mon, 20 Nov 2000 12:24:00 -0800 (PST)
To: Barbara Klemstine <barbara_klemstine@apsc.com>, Bob Anderson <bob_anderson@apses.com>, <dcazalet@apx.com>, <billr@calpine.com>, <jackp@calpine.com>, <glwaas@calpx.com>, Ken Czarnecki <ken_czarnecki@calpx.com>, <cabaker@duke-energy.com>, <gavaughn@duke-energy.com>, <rjhickok@duke-energy.com>, <gtbl@dynegy.com>, <kewh@dynegy.com>, <jdasovic@enron.com>, Susan J Mara <susan_j_mara@enron.com>, Curt Hatton <curt.hatton@gen.pge.com>, <foothill@lmi.net>, <camiessn@newwestenergy.com> ...
Subject: Fwd: New Application - CAC/EPUC Section 372(f)

The Cogeneration Association of California and EPUC have jointly filed an application?for relief at the CPUC.? The filing states that the CPUC, along with the EOB, has the affirmative responsibility to undertake an investigation into specific practices of ISO:
?
"The Commission and the EOB are to determine if any policy or action undertaken by the ISO, directly or indirectly, unreasonably discourages the retention of existing self-generation or cogeneration, or the connection of new self-generation or cogeneration resources to meet California■,s need for electric power.? If the investigation results in an affirmative finding, then the Commission and the EOB must undertake all necessary efforts to revise, mitigate, or eliminate offending policy or action of the ISO.This application affirmatively demonstrates the offending policies and actions undertaken by the ISO in violation of Section 372(f), and seeks remedial actions for these unreasonable policies and actions."
?
A copy of the application is attached for your information.
?
Dan
Received: from dymwsm13.mailwatch.com by ArterHadden.com; Mon, 20 Nov 2000 18:43:56 -0500
Received: from dymw0127.allegro.net (dymw0127.allegro.net [204.253.83.121]) by dymwsm13.mailwatch.com (8.11.0/8.11.0) with SMTP id eAKNi3O22310 for <douglass@arterhadden.com>; Mon, 20 Nov 2000 18:44:03 -0500
Received: from 204.253.83.72 by dymw0127.allegro.net with SMTP (WorldSecure Server SMTP Relay(WSS) v4.3); Mon, 20 Nov 00 18:42:37 -0500
X-Server-Uuid: 40f89cae-8e8c-11d4-bdb6-00508bd392a8
Received: from integraonline.com (inet-1a-bvtn.integraonline.com [206.163.82.156]) by dymwsm10.mailwatch.com (8.11.0/8.11.0) with SMTP id eAKNgah28428 for <douglass@arterhadden.com>; Mon, 20 Nov 2000 18:42: 36 -0500
Received: (qmail 9878 invoked from network); 20 Nov 2000 23:42:37 -0000
Received: from unknown (HELO aelaw.com) ([198.107.29.135]) (envelope-sender

CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. E543A38C5
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
ENRON-431250361464

<klc@aelaw.com>) by inet-1b-bvtn.integraonline.com (qmail-ldap-1.03) with
SMTP for <smckinley@ingaa.org>; 20 Nov 2000 23: 42:37 -0000
Message-ID: <3A19B907.563B910F@aelaw.com>
Date: Mon, 20 Nov 2000 15:51:35 -0800
From: "Kari Harteloo" <klc@aelaw.com>
Organization: Alcantar & Elsesser
X-Mailer: Mozilla 4.73 [en] (Win98; U)
X-Accept-Language: en
MIME-Version: 1.0
To: smckinley@ingaa.org, jwilliams@eei.org, kmccrea@sablaw.com,
michael-briggs@reliantenergy.com, defrawis@efaches.navfac.navy.mil,
rcsstl@cdmnet.com, mbrubaker@consultbai.com, tdodd@lgl.twc.com,
rfrank@enron.com, andy.bettwy@swgas.com, dnorris@sppc.com,
fchu@legal.ladwp.com, napedersen@jonesday.com,
mark.skowronski@honeywell.com, lgurick@calpx.com,
kduggan@capstoneturbine.com, douglass@arterhadden.com, montoym1@sce.com,
sconway@scwater.com, rsperberg@onsitesycom.com, jleslie@luce.com,
mshames@ucan.org, snelson@sempra.com, gbutsko@butskoutility.com,
EileenMSmithMArch@yahoo.com, lmoses@anaheim.net, awattslaw@earthlink.net,
rjhickok@duke-energy.com, gackerman@wptf.org,
furutanj@efawest.navfac.navy.mil, mdjoseph@adamsbroadwell.com,
freedman@turn.org, jab@cpuc.ca.gov, joe_como@ci.sf.ca.us,
chrisw@greenlining.org, chrisw@greenlining.org, ewo@jmbm.com,
imoosen@gralegal.com, bdunlop@gralegal.com, abh1@pge.com,
phanschen@mofo.com, pxo2@pge.com, scarter@nrdc.org, rjl9@pge.com,
rschmidt@bartlewells.com, bcragg@gmssr.com, bgaillar@enron.com,
eke@aelaw.com, jsqueri@gmssr.com, jbennett@gmssr.com, jkarp@whitecase.com,
lys@aelaw.com, lindseyhowdowning@dwt.com, rick.counihan@greenmountain.com,
edoneill@dwt.com, ssmyers@hooked.net,
grant_kolling@cerberus.city.palo-alto.ca.us, kpeterson@law-klp.com,
igsinc@ix.netcom.com, uditetrad@slip.net, jackp@calpine.com,
wbooth@booth-law.com, difellman@energy-law-group.com, dmarcus@slip.net,
gmorris@emf.net, philm@scdenergy.com, jna@speakeasy.org,
sberlin@mccarthylaw.com, sberlin@mccarthylaw.com, scottst@mid.org,
jeff@jbsenergy.com, blaising@braunlegal.com, jsole@caiso.com,
jweil@aglet.org, nextel3@msn.com, lreed@lmlaw.net, dkk@eslawfirm.com,
lfkaye@ka-pow.com, jdh@eslawfirm.com, abb@eslawfirm.com, abb@eslawfirm.com,
rliebert@cfbf.com, aorchar@smud.org, mpa@aelaw.com,
matthew.wright@Pacificorp.com, dws@keywaycorp.com,
treadway@alumni.princeton.edu, barbara_klemstine@apsc.com,
brivera505@aol.com, achan@ladwp.com, athomas@newenergy.com,
Denise.Canning@sce.com, jennifer.hasbrouck@sce.com, jkloberdanz@sempra.com,
mward@sempra.com, clower@earthlink.net, jskillman@prodigy.net,
ronknecht@aol.com, lhubbard@sempra.com, jnnc@chevron.com,
oshirock@pacbell.net, stephanie.krapf@pactel.com, epoole@adplaw.com,

aod@newsdata.com, mcosterh@seiworldwide.com, dya@ux.netcom.com, bepstein@fablaw.com, rbw@mrwassoc.com, clewis@icfconsulting.com, berry@apx.com, rita.norton@ci.sj.ca.us, rczahar@aol.com, rothrock@ix.netcom.com, rmccann@cal.net, cabaker@duke-energy.com, jewilson@arb.ca.gov, sgreen1@ix.netcom.com, karen@klindh.com, brussel@ci.redding.ca.us, mer@cpuc.ca.gov, jhg@cpuc.ca.gov, ajo@cpuc.ca.gov, am1@cpuc.ca.gov, bxw@cpuc.ca.gov, ctd@cpuc.ca.gov, dmb@cpuc.ca.gov, dsh@cpuc.ca.gov, eaq@cpuc.ca.gov, eyq@cpuc.ca.gov, ill@cpuc.ca.gov, gaw@cpuc.ca.gov, loe@cpuc.ca.gov, jxm@cpuc.ca.gov, ltt@cpuc.ca.gov, lwt@cpuc.ca.gov, mgl@cpuc.ca.gov, meb@cpuc.ca.gov, mlc@cpuc.ca.gov, nfw@cpuc.ca.gov, raw@cpuc.ca.gov, wsc@cpuc.ca.gov, toe@cpuc.ca.gov, vjb@cpuc.ca.gov, wmb@cpuc.ca.gov, weg@cpuc.ca.gov, wej@cpuc.ca.gov, ztc@cpuc.ca.gov, mmarks@energy.state.ca.us, jogata@energy.state.ca.us, mjaske@energy.state.ca.us, stomashe@energy.state.ca.us, vschwent@energy.state.ca.us, jonathan.teague@dgs.ca.gov, jgopal@energy.state.ca.us, jweisgall@aol.com, rcsstl@cdmnet.com, dnorris@sppc.com, mcmannes@aol.com, lgurick@calpx.com, woodrujb@sce.com, gbarnes@sempra.com, bfinkelstein@turn.org, jur@cpuc.ca.gov, dgrueneich@gralegal.com, ktilton@gralegal.com,